

25STCV25372 25STCV25372

County: los-angeles

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Case Number: 25STCV25372 Hearing Date: July 28, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: July

28, 2026

CASE NAME: Jane

Doe 1 v. First Congregational Church of Los Angeles, et al.

CASE NO.: 25STCV25372

MOTION

FOR PROTECTIVE ORDER

MOVING PARTY: Defendant

First Congregational Church of Los Angeles

RESPONDING PARTY(S): Plaintiff Jane Doe 1

REQUESTED RELIEF:

1. A

protective order to the deposition subpoenas for production of business records

request Nos. 2, 4, and 6 Plaintiff served upon the Los Angeles Police

Department (Discovery Section Subpoena Unit) and the Los Angeles Sheriff's

Department, Civil Branch, for criminal records and communications pertaining to

non-party Joshua Manly.

TENTATIVE RULING:

1. Motion

for protective order is DENIED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On August 28, 2025, Plaintiff Jane Doe 1 (Plaintiff) filed a Complaint against Defendants First Congregational Church of Los Angeles dba The Pilgrim School (FCCLA) and David Chan-Ooong Kang (Kang) with nine causes of action for: (1) Sexual Assault; (2) Sexual Battery; (3) Gender Violence; (4) Sexual Harassment in a Business or Service Relationship; (5) Intentional Infliction of Emotional Distress; (6) Negligence; (7) Negligent Supervision; (8) Negligent Hiring; and (9) Negligent Failure to Warn, Train or Educate.

According to the Complaint, while Plaintiff was a minor female student and athlete at FCCLA, Defendant Kang sexually assaulted her. Plaintiff alleges that FCCLA employed Defendant Kang as a soccer coach and that he also served as a board member. Plaintiff further alleges that FCCLA concealed the facts of Plaintiff's assault and continued to employ him as a soccer coach despite her report of the incident.

On October 3, 2025, Defendant Kang filed an answer.

On October 6, 2025, FCCLA filed a demurrer which the court OVERRULED.

On January 26, 2026, FCCLA filed an answer and a cross-complaint for indemnity against ROES 1 through 50.

On May 13, 2026, FCCLA filed the instant motion for protective order related to deposition subpoenas for production of business records.

On June 17, 2026, Plaintiff filed a stipulation for protective order which the court GRANTED.

On July 15, 2026, Plaintiff filed an opposition to FCCLA's

motion for protective order. On July 21, 2026, FCCLA filed a reply.

LEGAL STANDARD:

Protective Order

“The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. The court may make this determination pursuant to a motion for protective order by a party or other affected person.” (Code Civ. Proc. (CCP) § 2017.020(a).)

Meet & Confer

When a party demands the production of documents, the responding party may move for a protective order, which shall be accompanied by a meet and confer declaration. (CCP) §§ 2017.020(a), 2019.030(b), 2031.060(a).)

Here, the parties met and conferred via telephone. (Declaration of Jinny Cain ¶ 3.) Thus, this requirement is met.

Good Cause

For “good cause” shown, the court may make whatever order justice requires to protect a party against “unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” This protective order may include, but is not limited to, one or more of the following directions:

That

all or some of the items or categories of items in the demand need not be produced or made available at all.

That
the time specified in Section 2030.260 to respond to the set of demands,
or to a particular item or category in the set, be extended.

That
the place of production be other than that specified in
the demand.

That
the inspection, copying, testing, or sampling be made only on specified
terms and conditions.

That a
trade secret or other confidential research, development, or commercial
information not be disclosed, or be disclosed only to
specified persons or only in a specified way.

That
the items produced be sealed and thereafter opened only on order of the
court.

(CCP § 2031.060.)

A party seeking the protective order bears the
burden of proof, a preponderance of the evidence, to establish good cause and
cannot use mere conclusions to establish good cause without a factual showing.
(Stadish, supra, at p. 1145; Nativi, supra, at p. 318.)

ANALYSIS:

FCCLA contends good cause exists to issue a protective order
because the subject requests are unlimited in time and scope, fail to tailor
the requests to the facts of this case, seek information from a totally
unrelated criminal investigation of a former FCCLA employee, violate the
privacy rights of third party victims and witnesses, and will not lead to the
discovery of admissible evidence.

Plaintiff argues that the subpoenas seek directly relevant

documents, the non-specific privacy concerns cannot block production, and the protective order in place addresses any other privacy concerns.

FCCLA replies that the records sought remain irrelevant to this case and continue to implicate the privacy interests of third parties.

The requests at issue are:

2.

All COMMUNICATIONS between LAPD/LASD and the PILGRIM SCHOOL (including but not limited to officers, directors, managing agents, attorneys, employees, volunteers and staff), related to MANLY.

4. All COMMUNICATIONS between LAPD/LASD and the FCCLA (including but not

limited to officers, directors, managing agents, attorneys, employees, volunteers and staff), related to MANLY.

6.

All REPORTS concerning MANLY.

“Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (CCP § 2017.010.) “Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action.” (Ibid.) “Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, tangible thing, or land or other property.” (Ibid.) Put differently, the scope of discovery is broad. (Puerto v. Superior Court (2008) 158 Cal.App.4th 1242, 1249.)

Here, a protective order is not warranted. First, the information is relevant to Plaintiff's case because it goes to FCCLA's “knowledge” of whether it knew that its teachers engaged in inappropriate

behavior concerning minors. (Evid. Code § 1101(b).) Second, balancing the third party privacy interests against Plaintiff's need for discovery weighs in Plaintiff's favor because Plaintiff is seeking contact information for percipient witnesses for her case. (Puerto, supra, at p. 1250-1251, 1253-1254 [home addresses and telephone numbers are routinely produced during discovery].) In other words, at this stage, Plaintiff does not know what she does not know. The court would note that Defendant could have bolstered its showing because as to item one, they should be aware of the contents of any communications they had with the police agencies. Finally, any privacy interests are protected because the parties have a stipulated protective order in place now which can cover any documents produced. Thus, a protective order is not warranted.

Accordingly, the court DENIES FCCLA's motion for protective order.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion for protective order is DENIED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: July 28, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court